

appear to have been substantially these—"That a settlor must have intended to provide a permanent machinery for the execution of the trust; that he could not have reposed any personal confidence in the trustee's heir, who was unknown, and could not be ascertained beforehand; that the settlor must have contemplated the possibility that on the death of the trustee the heir might be an infant, or lunatic, or bankrupt, or insolvent, and so either incapable or unfit to discharge the office; that it might therefore be reasonably inferred that the settlor meant by confiding the trust to the trustee, his heirs and *assigns*, to give the trustee a discretionary power of preventing these inconveniences by [*233] vesting the estate in a devisee; *and that the circumstance that the settlor had given to the surviving trustee a power of appointing new trustees by *deed*, rather favoured the view that he also intended, when using the word 'assigns,' to confer on the trustee a right to devise the trust estate." The Court was also actuated by the feeling that many titles must have been accepted upon the footing of this enlarged construction. The decision was perhaps a bold one, but having been made it is not likely to be disturbed.

[20. **Sale by heir.**—Where a testator devised freehold and copyhold estates to trustees and their heirs upon trust that they "his said trustees or the trustees or trustee for the time being of that his will" should sell the estates, it was held that the copyhold heir of the surviving trustee to whom the estates had descended could execute the trust (a).

21. **44 & 45 Vict. c. 41.**—Where under the 30th sect. of the Conveyancing and Law of Property Act, 1881, trust or mortgage estates become vested in the personal representatives of a trustee or mortgagee, they are for the purposes of the section to "be deemed in law his heirs and assigns within the meaning of all trusts and powers." The wording of this section is not clear, but it is conceived that it enables the personal representatives to execute the trusts and powers which were originally reposed in the trustee, his heirs and

[(a) *Re Morton and Hallett*, 15 Ch. D. 143.]